

THE GAZETTE OF INDIA
EXTRAORDINARY
PART –III – SECTION IV
PUBLISHED BY AUTHORITY
SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION

Mumbai, the 30th day of December, 2003

SECURITIES AND EXCHANGE BOARD OF INDIA
(PROCEDURE FOR HOLDING ENQUIRY BY ENQUIRY
OFFICER AND IMPOSING PENALTY) (SECOND
AMENDMENT) REGULATIONS, 2003

F. No. SEBI/LAD/DOP/24418/2003. In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to amend the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002, namely:-

1. (i) These regulations may be called the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) (Second Amendment) Regulations, 2003.

(ii) They shall come into force on the date of their publication in the Official Gazette.

2. In the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002), after regulation 5, the following regulation shall be inserted, namely –

"Transfer of pending enquiry

5A.(1)Any enquiry in respect of violation of any provisions of the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) Regulations, 1992 pending before any enquiry officer immediately before the date of commencement of the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) (Second Amendment) Regulations, 2003, being an enquiry in respect of a violation which can be adjudicated under Chapter VIA of the Act pursuant to the provisions of the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) (Second Amendment) Regulations, 2003 may be transferred by the Chairman or the member by an order in writing to an adjudicating officer appointed under section 15I of the Act.

1. Where any matter has been transferred from an enquiry officer to an adjudicating officer under sub-regulation (1)-
 - a. the enquiry officer shall, as soon as may be, after such transfer forward the records of such enquiry proceedings to the adjudicating officer; and
 - b. the adjudicating officer may, on receipt of such records, proceed to deal with the matter, so far as may be, in the same manner as in the case of adjudicating proceedings under Chapter VIA read with the Securities and Exchange Board of

India (Procedure for Holding Inquiry and Imposing Penalties by Adjudicating Officer) Rules, 1995."

[ADVT-III/IV/ 16/2003-Exty.]

G.N. BAJPAI

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Foot Note:-

1. Securities and Exchange Board of India(Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002, were notified in the Gazette of India on 27.9.2002 vide S.O. No. 1045(E).
2. It were subsequently amended by Securities and Exchange Board of India(Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) (Amendment)Regulations, 2003 on 27th November, 2003 vide F. No.SEBI/LAD/DOP/22093/2003.